IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI, COURT-III

COMPANY APPLICATION NO. (CAA) - 72(ND)/2023

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

M/s. DIVINE BANIJYA PRIVATE LIMITED

……. First Applicant/Transferor Company No.1

AND

M/s. RAM BUILDCON PRIVATE LIMITED

…….. Second Applicant/Transferor Company No.2

AND

M/s. SANAKO ENGINEERS & DEVELOPERS PRIVATE LIMITED

…….. Third Applicant/Transferor Company No.3

AND

M/s. SARAYU OVERSEAS PRIVATE LIMITED

…….. Fourth Applicant/Transferor Company No.4

AND

M/s. STARTECH DEALCOM PRIVATE LIMITED

…….. Fifth Applicant/Transferor Company No.5

AND

M/s. SUBHAM DEALOM PRIVATE LIMITED

…….. Sixth Applicant/Transferor Company No.6

AND

M/s. PRABHU HOUSING PRIVATE LIMITED

…….. Seventh Applicant/Transferee Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 05.04.2024

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Manoj Kumar Garg, Mr. Sachin Kaushik, Advs.

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. This is a 1st Motion Petition jointly filed by the Applicant Companies seeking approval of this Tribunal about the Scheme of Arrangement under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of above Applicant Companies. It is represented that the registered office address of the Transferor Companies and Transferee Company is situated in New Delhi and therefore the subject matter of the said petition falls within the jurisdiction of this Tribunal.

2. Ld. Counsel has given the brief description of the Applicant Companies, which are as follows:

a) The First Applicant Company/Transferor Company No. 1 namely M/s. Divine Banijya Private Limited bearing CIN:U51109WB2006PTC111686 was incorporated on 06.11.2006 under the Companies Act 1956 with the Registrar of Companies, West Bengal at Kolkata as a Private Limited Company. The Registered Office of the Transferor Company No.1 got shifted from Kolkata, West Bengal to New Delhi vide Certificate of Registration of Regional Director order for change of State dated 25.05.2019 vide Corporate Identity No. U51109DL2006PTC350528 and such alteration was confirmed by an order of Regional Director dated 16.04.2019. The Registered Office of the Transferor Company No.1 is situated at E-205, LGF, Greater Kailash-II, New Delhi-110048.

The Authorised Share Capital of the First Applicant Company/Transferor Company No. 1 at the time of filing of this Application is Rs.33,00,000/- (Rupees Thirty Three Lakh Only) divided into 3,30,000 (Three Lakh Thirty Thousand) Equity Shares of Rs. 10/- (Rupees Ten Only) each. The Issued, Subscribed and Paid-up Share Capital is Rs. 32,75,000/- (Rupees Thirty Two Lakh Seventy Five Thousand Only) divided into 3,27,500 (Three Lakh Twenty Seven Thousand Five Hundred) Equity Shares of Rs. 10/- (Rupees Ten Only) each.

The Board of Directors of the First Applicant/Transferor Company No. 1 in its Board Meeting dated 15.05.2023 approved the proposed Scheme and further Mr. Rohit Bansal, Director and Authorized Signatory of said Applicant Company has been appointed to sign, verify, affirm, dispose and file affidavit, petitions, applications, vakalatnama etc. in support of the present petition.

b) The Second Applicant Company/Transferor Company No. 2 namely M/s. Ram Buildcon Private Limited bearing CIN:U70101DL1997PTC086775 was incorporated on 21.04.1997 under the Companies Act 1956 with the Registrar of Companies, NCT of Delhi & Haryana as a Private Limited Company. The Registered Office of the Transferor Company No.2 is situated at M-30, 2nd Floor, Greater Kailash-II, New Delhi-110048.

The Authorised Share Capital of the Second Applicant Company/Transferor Company No. 2 at the time of filing of this Application is Rs.10,00,000/- (Rupees Ten Lakh Only) divided into 1,00,000 (One Lakh) Equity Shares of Rs. 10/- (Rupees Ten Only) each. The Issued, Subscribed and Paid-up Share Capital is Rs. 9,70,410/- (Rupees Nine Lakh Seventy Thousand Four Hundred Ten Only) divided into 97,041 (Ninety Seven Thousand Forty One) Equity Shares of Rs. 10/- (Rupees Ten Only) each.

The Board of Directors of the Second Applicant/Transferor Company No. 2 in its Board Meeting dated 17.05.2023 approved the proposed Scheme and further Mr. Rahul Aggarwal, Director and Authorized Signatory of said Applicant Company has been appointed to sign, verify, affirm, dispose and file affidavit, petitions, applications, vakalatnama etc. in support of the present petition.

c) The Third Applicant Company/Transferor Company No. 3 namely M/s. Sanako Engineers & Developers Private Limited bearing CIN: U65910DL1996PTC083263 was incorporated on 14.11.1996 under the Companies Act 1956 with the Registrar of Companies, NCT of Delhi & Haryana as a Private Limited Company. The Registered Office of the Transferor Company No.3 is situated at E-205, LGF, Greater Kailash-II, New Delhi-110048.

The Authorised Share Capital of the Third Applicant Company/Transferor Company No. 3 at the time of filing of this Application is Rs.25,00,000/- (Rupees Twenty Five Lakh Only) divided into 2,50,000 (Two Lakh Fifty Thousand) Equity Shares of Rs. 10/- (Rupees Ten Only) each. The Issued, Subscribed and Paid-up Share Capital is Rs. 13,68,200/- (Rupees Thirteen Lakh Sixty Eight Thousand Two Hundred Only) divided into 1,36,820 (One Lakh Thirty Six Thousand Eight Hundred Twenty) Equity Shares of Rs. 10/- (Rupees Ten Only) each.

The Board of Directors of the Third Applicant/Transferor Company No. 3 in its Board Meeting dated 15.05.2023 approved the proposed Scheme and further Mr. Ankur Aggarwal, Director and Authorized Signatory of said Applicant Company has been appointed to sign, verify, affirm, dispose and file affidavit, petitions, applications, vakalatnama etc. in support of the present petition.

d) The Fourth Applicant Company/Transferor Company No.4 namely M/s. Sarayu Overseas Private Limited bearing CIN: U74899DL1995PTC072942 was incorporated on 05.10.1995 under the provisions of the Companies Act, 1956 as a Private Limited Company with the Registrar of Companies, NCT of Delhi & Haryana originally under the name of "Mega Trends Overseas Private Limited" and then the name changed to "Bhim Overseas Private Limited" on 31.08.2001 and then to "Sarana Overseas Private Limited" on 06.09.2008 and later changed to "Sarayu Overseas Private Limited". The Registered Office of Transferor Company No.4 is situated at M-30, 2nd Floor, Greater Kailash-II, New Delhi-110048.

The Authorised Share Capital of the Fourth Applicant Company/Transferor Company No.4 at the time of filing of this Application is Rs.1,33,00,000/- (Rupees One Crore Thirty Three Lakh Only) divided into 13,30,000 (Thirteen Lakh Thirty Thousand) Equity Shares of Rs. 10/- (Rupees Ten Only) each. The Issued, Subscribed and Paid-up Share Capital is Rs. 1,32,75,000/- (Rupees One Crore Thirty Two Lakh Seventy Five Thousand Only) divided into 13,27,500 (Thirteen Lakh Twenty Seven Thousand Five Hundred) Equity Shares of Rs. 10/- (Rupees Ten Only) each.

The Board of Directors of the Fourth Applicant/Transferor Company No. 4

in its Board Meeting dated 16.05.2023 approved the proposed Scheme and further Mr. Ankur Aggarwal, Director and Authorized Signatory of said Applicant Company has been appointed to sign, verify, affirm, dispose and file affidavit, petitions, applications, vakalatnama etc. in support of the present petition.

e) The Fifth Applicant Company/Transferor Company No.5 namely M/s. Startech Dealcom Private Limited bearing CIN:U74900WB2009PTC133300 was incorporated on 02.03.2009 under the provisions of the Companies Act, 1956 as a Private Limited Company with the Registrar of Companies, West Bengal at Kolkata and later changed to E-205, LGF, Greater Kailash-II, New Delhi-110048 vide Certificate of Registration of Regional Director order for change of State dated 25.05.2019 vide CIN: U51109DL2006PTC350528 and such alteration was confirmed by an order of Regional Director dated 16.04.2019.

The Authorised Share Capital of the Fifth Applicant Company/Transferor Company No. 5 at the time of filing of this Application is Rs.24,00,000/- (Rupees Twenty Four Lakh Only) divided into 2,40,000 (Two Lakh Forty Thousand) Equity Shares of Rs. 10/- (Rupees Ten Only) each. The Issued, Subscribed and Paid-up Share Capital is Rs. 23,10,000/- (Rupees Twenty Three Lakh Ten Thousand Only) divided into 2,31,000 (Two Lakh Thirty One Thousand) Equity Shares of Rs. 10/- (Rupees Ten Only) each.

The Board of Directors of the Fifth Applicant/Transferor Company No. 5 in its Board Meeting dated 17.05.2023 approved the proposed Scheme and further Mrs. Manju Aggarwal, Director and Authorized Signatory of said Applicant Company has been appointed to sign, verify, affirm, dispose and file affidavit, petitions, applications, vakalatnama etc. in support of the present petition.

f) The Sixth Applicant Company/ Transferor Company No.6 namely M/s. Subham Dealcom Private Limited bearing CIN:U74900WB2009PTC133308 was incorporated on 02.03.2009 under the provisions of the Companies Act, 1956 as a Private Limited Company with the Registrar of Companies, West Bengal at Kolkata. The Registered Office of Transferor Company No.6 got shifted from the Kolkata, West Bengal to New Delhi i.e."E-205 L.G.F, Greater

Kailash-II, New Delhi-110048" vide "Certificate of Registration of Regional Director order for change of State" dated 25.05.2019 vide CIN: U74900DL2009PTC350526 is situated at M-30, 2nd Floor, Greater Kailash-II, New Delhi-110048.

The Authorised Share Capital of the Sixth Applicant Company/Transferor Company No. 6 at the time of filing of this Application is Rs.25,00,000/- (Rupees Twenty Five Lakh Only) divided into 2,50,000 (Two Lakh Fifty Thousand) Equity Shares of Rs. 10/- (Rupees Ten Only) each. The Issued, Subscribed and Paid-up Share Capital is Rs. 24,02,500/- (Rupees Twenty Four Lakh Two Thousand Five Hundred Only) divided into 2,40,250 (Two Lakh Forty Thousand Two Hundred Fifty) Equity Shares of Rs. 10/- (Rupees Ten Only) each.

The Board of Directors of the Sixth Applicant/Transferor Company No. 6 in its Board Meeting dated 18.05.2023 approved the proposed Scheme and further Mrs. Manju Aggarwal, Director and Authorized Signatory of said Applicant Company has been appointed to sign, verify, affirm, dispose and file affidavit, petitions, applications, vakalatnama etc. in support of the present petition.

g) The Seventh Applicant Company/Transferee Company namely M/s. Prabhu Housing Private Limited bearing CIN: U74899DL1995PTC074632 was incorporated on 14.12.1995 under the provisions of the Companies Act, 1956 as a Private Limited Company with the Registrar of Companies, NCT of Delhi & Haryana under the name and style of “M/s. Mega Trends Housing Private Limited” and later the name of the said Transferee Company got changed to "M/s. Prabhu Housing Private Limited" on 31.08.2001. The Registered office of the Seventh Applicant/Transferee Company is situated at M-30, 2nd Floor, Greater Kailash, Part- II New Delhi-110048.

The Authorised Share Capital of the Seventh Applicant Company/Transferee Company at the time of filing of this Application is Rs.15,00,000/-(Rupees Fifteen Lakh Only) divided into 1,50,000 (One Lakh Fifty Thousand) Equity Shares of Rs. 10/- (Rupees Ten Only) each. The Issued, Subscribed and Paid-up Share Capital is Rs. 9,83,500/- (Rupees Nine Lakh Eighty Three Thousand Five Hundred Only) divided into 98,350

(Ninety Eighty Thousand Three Hundred Fifty) Equity Shares of Rs. 10/- (Rupees Ten Only) each.

The Board of Directors of the Seventh Applicant/Transferee Company in its Board Meeting dated 18.05.2023 approved the proposed Scheme and further Mr. K.K. Aggarwal, Director and Authorized Signatory of said Applicant Company has been appointed to sign, verify, affirm, dispose and file affidavit, petitions, applications, vakalatnama etc. in support of the present petition.

3. The Affidavits in support of the present petition have been sworn by Mr. Rohit Bansal, Mr. Rahul Aggarwal, Mr. Ankur Aggarwal, Mrs. Manju Aggarwal and Mr. KK Aggarwal, being the Authorized Signatories of Transferor Company No.1 to 6 and Transferee Company are filed along with the petition.
4. The Board of Directors of the Transferor Companies No. 1 to 6 and the Transferee Company in the respective meetings held on 15.05.2023, 16.05.2023, 17.05.2023 and 18.05.2023, considered and unanimously approved the proposed Scheme of Amalgamation.
5. The Applicant Companies have filed its Memorandum and Articles of Association inter alia delineating their object clauses as well as the certified true copy of the latest audited annual accounts of the Transferor Company/ Applicant Company for the financial year ended on 31st March 2023 as required under section 232(2)(e) of the Companies Act, 2013.
6. The Applicant Companies have filed the true copy of the proposed Scheme of Arrangement and have outlined the benefit of the same, which are inter-alia as follows:
    a. *Amalgamating Transferor Companies and the Transferee Company will give the consolidated company better finances, facilitate adequate resource mobilization to sustain growth;*
    b. *Strengthening and consolidating the position of the Transferee Company and enabling it post-merger to participate more vigorously and profitably in an increasingly competitive and liberalized market;*
    c. *Enabling better leverage of facilities, infrastructure and human*

resources and for better administration;

d. *Augmenting and strengthening core businesses of the Transferee Company and resulting in enhancement of the shareholders' value of Transferee Company;*
e. *Enabling the amalgamated entity to raise funds from the financial institutions on better terms. The synergy of the amalgamation will improve operational efficiency, integrated management functioning and will enhance the share value for the benefit of shareholders of the existing entities;*
f. *The merger of Transferor Companies into Transferee Company will result in reduction of overheads, administrative, managerial and other expenditure, and bring about operational rationalization, organizational efficiency and optimal utilization of various resources;*
g. *The merger will result in significant reduction in the multiplicity of legal and regulatory compliances required at present to be carried out by each Transferor Company and the Transferee Company, and also avoid duplication of administrative functions and eliminate multiple record-keeping;*
h. *The said Scheme is beneficial to the Applicant Companies, their shareholders, creditors, employees and all concerned and will enable these companies to achieve and fulfill their objectives more efficiently and economically; and*
i. *The value of the shares of the combined entity shall enhance the shareholders' value by becoming a part of a stronger operating entity, rationalization of inter-company transactions etc.*

7. The said Scheme of Amalgamation, inter alia, provides as under:

i. *"The Scheme though operative from the Appointed Date, i.e., 01.04.2023, or as may be approved by this Hon'ble Tribunal, but shall come into force on the Effective Date, i.e., on which all certified copies of the order(s) passed by the Hon'ble National Company Law Tribunal, New Delhi Bench or any other appropriate authority sanctioning this Scheme*

(whereby vesting the assets, properties, liabilities, rights, duties, obligations and like of the Transferor Companies in the Transferee Company) are filed with the office of Registrar of Companies, NCT of Delhi & Haryana.

ii. *In consideration for the amalgamation of Transferor Companies into the Transferee Company, every member of the Transferor Companies holding fully paid-up equity shares of the Transferor Companies shall, on such date as the Board of Directors of the Transferee Company may determine, receive the equity shares as per the following details:*

For every 1 Equity shares of :-	**Equity Shares of Seventh Applicant/ Transferee Company "PRABHU HOUSING PRIVATE LIMITED"**
First Applicant/ Transferor Company No.1 (Divine Banijya Private Limited)	NOT APPLICABLE
Second Applicant/ Transferor Company No.2 (Ram Buildcon Private Limited)	0.67 Equity Shares
Third Applicant/ Transferor Company No.3 (Sanako Engineers & Developers Private Limited)	1.10 Equity Shares
Fourth Applicant/ Transferor Company No.4 (Sarayu Overseas Private Limited)	1.50 Equity Shares
Fifth Applicant/ Transferor Company No.5 (Startech Dealcom Private Limited)	0.18 Equity Shares
Sixth Applicant/ Transferor Company No.6 (Subham Dealcom Private Limited)	0.75 Equity Shares

iii. *Upon the Scheme becoming effective and with effect from the Appointed Date, the merger of the Transferor Companies with Transferee Company shall be accounted as per "The Pooling of Interests Method" as prescribed in the Accounting Standard-14 contained in Companies (Indian Accounting Standards) Rules, 2015 notified under Section 133 of the Companies Act, 2013 such that transactions inter se the Transferor Companies and Transferee Company appearing in the books of accounts of either of the Transferor Companies or Transferee Company, shall stand cancelled.*

iv. *After amalgamation, the authorized share capital of all Transferor Companies shall merge into existing authorized share capital of the Transferee Company, hence, the total authorized share capital of the Transferee company shall be increased by Rs. 2,50,00,000/-(Rupees Two Crore Fifty Lakh Only) divided into 25,00,000 (Twenty Five Lakh) Equity Shares of Rs. 10/- (Rupees Ten only) each. Thus, the Transferee Company's total authorized share capital shall after amalgamation become Rs. 2,65,00,000/-(Rupees Two Crore Sixty Five Lakhs Only) divided into 26,50,000 (Twenty Six Lakh Fifty Thousand) Equity Shares of Rs. 10/-(Rupees Ten Only) each.*

v. *Consequent to the Amalgamation, and upon the Scheme becoming effective, both the Transferor Companies will be dissolved without winding up as provided under section 232 (3)(d) of the Companies Act, 2013.*

8. The aggregate assets of the Transferee Company after the Transferor Companies merge with the Transferee Company, is expected to be more than sufficient to meet all the liabilities of the Transferee Company that may exist or occur in future.

9. The Transferor Company No.1 has a total of 3 (Three) Equity Shareholders and no Preference Shareholders and no secured and unsecured creditors.

10. The Transferor Company No. 2 has a total of 6 (Six) Equity Shareholders and no Preference Shareholders and no secured and unsecured creditors.

11. The Transferor Company No. 3 has a total of 10 (Ten) Equity Shareholders and no Preference Shareholders and no secured and unsecured creditors.

12. The Transferor Company No. 4 has a total of 13 (Thirteen) Equity Shareholders and no Preference Shareholders and no secured and unsecured creditors.

13. The Transferor Company No. 5 has a total of 3 (Three) Equity Shareholders and no Preference Shareholders and no secured and unsecured creditors.

14. The Transferor Company No. 6 has a total of 3 (Three) Equity Shareholders and no Preference Shareholders and no secured and unsecured creditors.

15. The Transferee Company has a total of 11 (Eleven) Equity Shareholders and no Preference Shareholders and no secured and unsecured creditors.

16. The Table showing the status of the Equity Shareholders, Secured Creditors and Un-secured Creditors of the Transferor Companies and Consent Affidavits obtained for the proposed Scheme of Amalgamation is as follows:

Transferor Company No.1 **No. of Shareholders – 3– All given consent** Equity Shareholders – 3 Preference Shareholders – NIL No. of Secured Creditors – NIL No. of Unsecured Creditors – NIL	**Transferor Company No.4** **No. of Shareholders – 13– All given consent** Equity Shareholders – 13 Preference Shareholders – NIL No. of Secured Creditors – No. of Unsecured Creditors – NIL
Transferor Company No.2 **No. of Shareholders – 6– All given consent** Equity Shareholders – 6 Preference Shareholders – NIL No. of Secured Creditors – NIL No. of Unsecured Creditors – NIL	**Transferor Company No.5** **No. of Shareholders – 3– All given consent** Equity Shareholders – 3 Preference Shareholders – NIL No. of Secured Creditors – NIL No. of Unsecured Creditors – NIL
Transferor Company No.3 **No. of Shareholders – 10 – All given consent** Equity Shareholders – 10 Preference Shareholders – NIL No. of Secured Creditors – NIL No. of Unsecured Creditors – NIL	**Transferor Company No.6** **No. of Shareholders – 3– All given consent** Equity Shareholders – 3 Preference Shareholders – NIL No. of Secured Creditors – NIL No. of Unsecured Creditors – NIL

17. The Table showing the status of the Equity Shareholders, Secured Creditors and Un-secured Creditors of the Transferee Company and Consent Affidavits obtained for the proposed Scheme of Amalgamation is as follows:

Transferee Company
No. of Shareholders – 11 – All given consent Equity Shareholders – 11 Preference Shareholders – NIL No. of Secured Creditors – NIL No. of Unsecured Creditors – NIL

18. Having heard the submissions made by Ld. Counsel and having perused the records as well as the documents placed on record.

    a. We dispense with the requirement of convening, holding and conducting meetings of Equity Shareholders, Preference Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies. Since, the Equity Shareholders of the Applicant Companies have given their consent by way of an Affidavit and have no objection to the present scheme. The consent letters of all the Equity Shareholders are filed along with the petition.

    b. We direct service of notice of the present Application on (a) the Central Government through the office of the concerned Regional Director, Ministry of Corporate Affairs, New Delhi; (b) the Registrar of Companies, New Delhi; (c) the Office of the concerned Official Liquidator, New Delhi; and (d) the concerned Income Tax Department.

    The prayer sought in the present petition bearing **CA.CAA-72(ND)/2023** stands **allowed** on the aforesaid term and is accordingly **disposed of**.

19. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

20. Let copy of the order be served to all the parties.

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)